

25STCP03321 25STCP03321

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Case Number: 25STCP03321 Hearing Date: August 19, 2026 Dept: 833

Betty Logan, Case No. 25STCP03321

Hearing:

August 14, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Housing Authority of Judge: Joseph Lipner

The

City of Los Angeles, et. al.

Order Denying

Petition for Writ of Mandate

INTRODUCTION

Petitioner Betty Logan ("Petitioner") moves for a writ of mandate directing the Court to overturn the decision to terminate Petitioner's Section 8 subsidy made by the Housing Authority of the City of Los Angeles ("HACLA") and Lourdes Castro Ramirez ("Ramirez") (collectively, "Respondents").

Petitioner also moves that the Court augment the administrative record, and include a declaration "concerning testimony Petitioner would have provided had she been given the opportunity to

do so.” (Order Granting Stay, filed January 22, 2026.)

The Court GRANTS the motion to augment the record.

The Court also GRANTS the petition for writ of mandate. The Court directs HACLA to vacate its decision and remands the case to HACLA to comply with this order. The Court takes no position on how HACLA exercises its discretion following remand, except that HACLA must be clear about what legal rules it is following when making its decisions. In the interim, HACLA is required to abide by the Court’s order of January 22, 2026, which means Petitioner will continue to receive Section 8 benefits.

BACKGROUND

A. Petitioner’s Criminal History and the Termination of Section 8 Assistance

The Section 8 Housing Choice Voucher Program, commonly known as “Section 8,” provides housing payment assistance to low-income families. The enabling statutes are found at 42 U.S.C. § 1437f et seq. and the implementing regulations are found at 24 C.F.R. Part 982.

The program is operated by the U.S. Department of Housing and Urban Development (“HUD”) and is implemented by local public housing agencies (“PHAs”) such as HACLA. A participant pays approximately 30 percent of their income toward rent and the PHA pays the balance directly to the landlord. (42 U.S.C. § 1437f, subd. (o)(2)(A)(i).) Each PHA must adopt a written Administrative Plan, which establishes local policies for the administration of the Section 8 program. (24 C.F.R. § 982.54, subd. (a).)

A PHA may terminate assistance because of a family’s action or failure to act, but only for certain enumerated reasons. (See 24 C.F.R. §§ 982.552, 982.553.) A PHA is required to provide an opportunity for an informal hearing to consider whether a PHA’s decision to terminate assistance because of the family’s action or failure to act “are in accordance with the law, HUD regulations and PHA policies.” (See 24

C.F.R § 982.555, subd. (a)(1)(iv).) A notice of intent to terminate Section 8 housing subsidies must contain a brief statement of reasons for the decision to terminate. (24 CFR § 982.555, subd. (c)(2)(i).) The Administrative Plan must state the PHA procedures for conducting informal hearings. (See 24 C.F.R § 982.555, subd. (e)(1).) A PHA's decision to terminate a subsidy is final.

Petitioner

had a Section 8 subsidy for a housing unit at 2121 W. Court St 6, Los Angeles, CA 90026. (AR 21.)

On

August 10, 2023, HACLA sent Petitioner a Notice of Intended Action, saying Petitioner's participation in the Section 8 Housing Program would be terminated as a result of participation in violent criminal activity. (AR 20.)

According

to the HACLA Section 8 Administrative Plan, HACLA terminates assistance for the family if any member of the participant family commits fraud, bribery, or any other corrupt or criminal act in connection with the federal housing program. (AR 12-13.)

The

Family Obligations require that the participant cannot engage in drug-related criminal activity or violent criminal activity which threatens the health, safety, or right to peaceful enjoyment of other residents. (AR 13.)

Petitioner

had been arrested, charged, and convicted of assault by means likely to produce great bodily felony. (AR 20, AR 44.) More specifically, Petitioner's former romantic partner had tried to set Petitioner's house on fire and Petitioner had gotten into a physical altercation with her formal romantic partner. (AR 13.) Petitioner was also absent from her housing unit for more than 30-days due to incarceration and failed to promptly disclose this fact to HACLA. (AR 11.) However, the record also reveals that Petitioner disclosed her release from jail to HACLA just two days after she was released from jail. (AR 38, 49.)

On

August 15, 2023, Petitioner requested a hearing. (AR 19.) A hearing was conducted on July 14, 2025. (AR 11.)

At

the hearing, Petitioner openly admitted she was in violation of the rules for Section 8 Housing:

But I get it. Like, I get it. If you guys want to terminate, I get it. Like, there's nothing I can do. Like, it's nothing really I can do. Like, I am in violation of those rules. I am. I am in violation, and I know (indiscernible).

(AR 120.)

Petitioner did state that she desperately needed Section 8 housing because she has two children to support. (AR 13.) Petitioner also stated that she pled guilty because she could not afford the ankle monitor she had to wear. (AR 120.) Petitioner's mental health clinician testified that Petitioner has a history of schizoaffective disorder and Petitioner's mental health condition might be a contributing factor to the allegations in this case. (AR 126.)

The hearing officer recommended that Petitioner's Section 8 housing be terminated based on violent and other criminal activity and an unreported vacancy violation. (AR 116.) The hearing officer concluded that there was sufficient evidence to sustain a finding that Petitioner had breached her Family Obligations as a Participant of Section 8, and HACLA did not abuse its discretion to terminate Petitioner's housing subsidy. (AR 13-14.)

On

July 28, 2025, the hearing officer issued a decision upholding HACLA's intended termination of Ms. Logan's subsidy and set the termination for August 31, 2025. (AR 11-15.)

The

petition followed.

On

January 22, 2026, the Court (Goorvitch, J.) granted Petitioner's request for a stay. The Court found that a stay would be in the public interest to protect Ms. Logan's health and safety, emphasizing evidence Ms. Logan submitted showing that she suffers from end-stage liver cirrhosis and is on the waiting list for a liver transplant; she will face eviction without Section 8; and if she loses

her stable housing, the transplant process will not proceed. (Order of January 22, 2026, at pp. 1-2.) The Court also found that Petitioner had demonstrated a sufficient likelihood of success on the merits, because the hearing officer found her credible, yet “failed to address the issue whether the incident [with her former romantic partner] was ‘directly related’ to one in which Petitioner was the victim” (in which case the incident could not be cause for termination per federal regulations). (Order of January 22, 2026, at p. 4.)

LEGAL STANDARD

Under Code of

Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5, subd. (b).)

In cases involving

a fundamental vested right, including terminations of Section 8 assistance, the Court must exercise its independent judgment to determine whether the agency's findings are supported by the weight of the evidence. (*Harrington v. Housing Authority of Riverside County* (2026) 118 Cal.App.5th 1086, 1098-1099.)

Under the substantial evidence standard, the trial court must draw all reasonable inferences in favor of the agency's factual findings. (*Id.*, at p. 1099.) However, the independent judgment standard gives the trial court the power to draw its own reasonable inferences from the evidence and to make its own determinations as to the credibility of witnesses. (*Id.*, at p. 1099.) That said, the trial court must accord a strong presumption of correctness to administrative findings, and the burden rests on the complaining party to show that the administrative decision is contrary to the weight of the evidence. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 816-817.)

In *Topanga Assn.*

for a *Scenic Community v. County of Los Angeles*, (1974) 11 Cal.3d 506 (*Topanga*), 515, the Supreme Court held that “implicit in [Code of Civil Procedure] section 1094.5 is a requirement that the agency which renders the challenged decision must set forth findings to bridge the analytic gap between the raw evidence and ultimate decision or order.” The court

explained that “among other functions, ... findings enable the reviewing court to trace and examine the agency’s mode of analysis.... Absent such roadsigns, a reviewing court would be forced into unguided and resource-consuming explorations; it would have to grope through the record to determine whether some combination of credible evidentiary items which supported some line of factual and legal conclusions supported the ultimate order or decision of the agency....” (11 Cal. 3d at 516-517 [fns. omitted].)

“The findings requirement ‘serves to conduce the administrative body to draw legally relevant sub-conclusions supportive of its ultimate decision; the intended effect is to facilitate orderly analysis and minimize the likelihood that the agency will randomly leap from evidence to conclusions.’” (West Chandler Blvd. Neighborhood Ass’n vs. City of Los Angeles (2011) 198 Cal.App.4th 1506, 1521-22.) “Administrative agency findings are generally permitted considerable latitude with regard to their precision, formality, and matters reasonably implied therein.” (Southern Pacific Transportation Co. v. State Bd. of Equalization (1987) 191 Cal.App.3d 938, 954.) However, “mere conclusory findings without reference to the record are inadequate.” (West Chandler, supra, 198 Cal.App.4th at pp. 1521-22.) If the court “cannot discern the analytic route the [agency] traveled from evidence to action,” the decision does not comply with Topanga. (Ibid.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of statute or regulation is a question of law. (See State Farm Mut. Auto. Ins. Co. v. Quackenbush (1999) 77 Cal.App.4th 65, 77.) In addition, “[a] challenge to the procedural fairness of the administrative hearing is reviewed de novo on appeal because the ultimate determination of procedural fairness amounts to a question of law.” (Nasha L.L.C. v. City of Los Angeles (2004) 125 Cal.App.4th 470, 482.)

JUDICIAL NOTICE

The Court GRANTS Petitioner’s request for judicial notice (“RJN”).

MOTION TO AUGMENT
THE RECORD

The Court may augment the record in cases where the court exercises its independent judgment, or remand for reconsideration, “[w]here the court finds that there is relevant evidence that, in the exercise of reasonable diligence, could not have been produced or that was improperly excluded at the hearing before respondent.” (Code Civ. Proc., § 1094.5, subd. (e).)

During the hearing, the hearing officer incorrectly omitted from the subject of Petitioner’s testimony the subject of Petitioner’s alleged failure to promptly report her absence. (AR 117-120.) Petitioner wanted to testify that the reason she did not contact HACLA herself from jail was because it was not possible to place a collect call to HACLA or email them. (Logan Decl., iso Motion to Augment ¶¶ 4-5.)

In addition, Ms. Logan tried to testify about mitigating circumstances and disabilities three times and each time the hearing officer interrupted her, a pattern perhaps more evident in the video recording. (AR 120, 123, 128; AR Supp. At 14:00-15:20; 18:00-18:30; 24:00-24:55.) Had Petitioner been permitted to testify fully, she would have stated additional facts, including that she suffers from end-stage liver cirrhosis, needs a liver transplant, is on the organ waiting list, and needs to have stable housing to receive a transplant. (Logan Decl., iso Motion to Augment ¶¶ 6-9.)

The motion to augment the record is unopposed.

The Court finds that Petitioner has met her burden to show that there was relevant evidence that was improperly excluded at the hearing.

Therefore, the Court GRANTS the motion to augment the record.

DISCUSSION

A.
HACLA failed to consider whether Petitioner was the victim of

domestic violence or dating violence

Petitioner

argues that HACLA failed to consider that Petitioner was a victim of dating violence. Under 24 C.F.R. § 982.551, subd. (I), when the alleged criminal activity “directly related to domestic violence [or] dating violence,” such circumstances “shall not be cause for termination of tenancy, occupancy rights, or assistance of the victim, if the tenant or an affiliated individual of the tenant...is the victim.”

Additionally,

24 C.F.R. § 5.2005, subd. (b)(2) provides that: “A tenant in a covered housing program may not be denied tenancy or occupancy rights solely on the basis of criminal activity directly relating to domestic violence, dating violence, sexual assault, or stalking if: (i) The criminal activity is engaged in by a member of the household of the tenant or any guest or other person under the control of the tenant, and (ii) The tenant or an affiliated individual of the tenant is the victim or threatened victim of such domestic violence, dating violence, sexual assault or stalking.”

The

hearing officer reported that Petitioner had been involved in a physical altercation with an estranged romantic partner after the romantic partner set Petitioner's unit on fire. (AR 13-14.) However, there is no evidence in the record to indicate that the hearing officer or HACLA ever considered whether the alleged criminal activity was related to domestic violence or dating violence.

HACLA

contends that it need not consider whether the alleged criminal activity was related to domestic violence or dating violence because Petitioner never raised or asserted any such condition (Opposition, 9:26-10:7) and the record supposedly makes clear that Petitioner was the aggressor in the confrontation and not the victim. (Opposition, 10:8-10:14.)

This

argument is unconvincing. First, HACLA does not cite to any federal or state law or regulation which requires a party to announce that they are victims of domestic violence or dating violence. Second, Petitioner testified at the administrative hearing that the incident arose from arson committed against her

by her former romantic partner (AR 119-122.) The hearing officer admits that these facts are undisputed. (AR 12-14.) Once Petitioner testified that the criminal activity and resulting absence stemmed from dating violence perpetrated by her former intimate partner against her, HACLA should have assessed whether the housing protections barred termination of her benefits.

Finally,

HACLA's argument that Petitioner was the aggressor in this situation is not supported by the evidence. First, Petitioner appeared to have pled no contest because of financial issues, not because Petitioner believed she was guilty. (AR Supp at 13:38-1400; AR 120.) Evidence in the record indicates Petitioner's former partner fabricated her injuries. (AR 121.) HACLA claims that Petitioner's former partner never faced any charges, but this does not imply that Petitioner was the aggressor. HACLA also claims that Petitioner was most concerned about the fact that she did not use a weapon on her former partner. (AR 119.) This does not address the question of who instigated the violence.

Upon

remand, HACLA must consider whether the alleged criminal activity was related to domestic violence or dating violence to determine whether the protections of 24 C.F.R. § 982.551, subd. (l) and 24 C.F.R. § 5.2005, subd. (b)(2) apply.

B.

HACLA erred by giving conclusive weight to the nolo contendere plea

California

law recognizes that a nolo contendere plea and a resulting conviction is not conclusive evidence of guilt. (See, e.g. *County of Los Angeles v. Civil Service Com.* (1995) 39 Cal.App.4th 620, 627.) "But when the conviction is based on a nolo contendere plea, its reliability as an indicator of actual guilt is substantially reduced, both because of the defendant's reservations about admitting guilt for all purposes and because the willingness of the district attorney to agree to and the court to approve the plea tends to indicate weakness in the available proof of guilt." (*Id.*, at p. 628.)

Here,

Petitioner pled nolo contendere to the charges against her. Petitioner did so, she contends, because she could not afford the cost of an ankle monitor. (AR 118-121.) The hearing officer used the

nolo contendere plea and the resulting conviction as a basis to affirm the revocation of Section 8 housing benefits. (AR 11-15.) The hearing officer explained that the time to rebut criminal charges was at trial. (AR 14.) The record shows that the hearing officer gave dispositive or almost dispositive weight to the nolo contendere plea and did not consider the circumstances surrounding it, stating that Petitioner should have contested the plea at trial. The hearing officer may consider the nolo contendere plea, but should also consider the surrounding circumstances.

HACLA

argues that federal policy mandates they remove anyone convicted of a crime. (Opposition, 11:13-15.) This argument is incorrect. Except for specific convictions for manufacture or production of methamphetamine at federally assisted housing, not at issue here, HACLA has discretionary authority under federal law to terminate Section 8 Housing Choice Voucher assistance for specifically defined categories of criminal activity, including violent criminal activity. (See 24 C.F.R. §§ 982.553, subd. (b)(1)(ii), 982.553, subd. (b)(2), 982.551, subd. (l); *Costa v. Fall River Housing Authority* (2009) 453 Mass. 614, 630 (discussing the discretion that HUD regulations vest in the PAS to determine which types of activities are cause for termination).)

HACLA

misconstrues the applicable federal regulations, arguing that it has “an affirmative duty to evict tenants involved in criminal activity.” (Opposition, 11:18-19.) In apparent support for its position, HACLA provides two block quotes from *Miller v. McCormick* (D. Me. 2009) 605 F. Supp. 2d 296, 302—one quoting from 24 C.F.R. § 982.553, subd. (c), a regulation setting a preponderance of the evidence standard for whether a participant has engaged in criminal activity, and one referring to a later-rejected magistrate judge’s overly broad interpretation of this regulation. (Opposition, 11:18-25.) Neither *Miller* nor this regulation support HACLA’s proposition of an affirmative duty to evict.

HACLA also cites to the U.S. Housing Act, Section 6(1)(6), USC 1437d(l)(6). This statute is not relevant. It requires agencies to utilize leases for public housing projects that allow for but do not require termination of a tenancy for specific types of criminal activity (drug-related or threatening the health, safety, or peaceful enjoyment of tenants).

C.

HACLA's decision to terminate based on an unreported absence is not supported by the findings

HUD

regulation authorizes terminations for absences of more than 180 days and HACLA policy does so for absences more than 90 days, but no law or policy appears to authorize terminations for 90 days or less, such as Petitioner's absence here. (See 24 C.F.R. § 982.312; HACLA Admin. Plan §§ 6.17.2, 6.17.3 (RJN Ex. 3).)

However,

HACLA decided to terminate Petitioner because her absence for 42 days was unreported, and she violated 24 C.F.R. § 982.55, subd. (h)(7)(i) which requires prompt reporting of any absence from the unit. HACLA's findings in support of Petitioner's termination do not analyze or discuss any evidence regarding prompt reporting of the absence. (AR 11-14.) The hearing officer ignores the fact that Petitioner notified HACLA of her absence on the first business day after release, and that her landlord notified HACLA four days after her arrest. (AR 49.) After HACLA discovered this information, it approved a new rental unit for Petitioner. (AR 48.) The hearing officer fails to explain why Petitioner and her previous landlord's disclosures of the arrest are not prompt and summarily concludes that "the absence was not promptly reported to HACLA." (AR 12-14.)

The

hearing officer's argument appears to be heavily reliant on HACLA's investigator. (AR 116.) However, HACLA investigator incorrectly stated that Petitioner "moved out of the subsidized unit." (AR 116.) Petitioner did not move out; Petitioner was arrested. There is no evidence in the record to indicate that Petitioner anticipated she would be jailed for more than 30 days. And as Petitioner's declaration accompanying the Motion to Augment indicates, Petitioner had no ability to report her absence to HACLA from jail because Petitioner had no access to email and no way to call HACLA's phone number. (Logan Decl., iso Motion to Augment ¶¶ 4-5.)

The

fundamental problem for HACLA is a disconnect between their stated reason for termination and the evidence in the record. When there is a disconnect, HACLA is not in compliance with Topanga, which requires administrative agencies to "bridge the analytic gap between the raw evidence and ultimate decision or order." (Topanga, supra, 11 Cal.3d at p. 515.)

On

remand, HACLA must consider the evidence about Petitioner's access to communications in jail and must spell out how the evidence in the record warrants a finding of a lack of promptness, such that termination is the appropriate remedy.

D. HACLA's decision to terminate based on an unreported absence ignored the law

The

law requires a material violation of a family's reporting obligations to justify termination. (*Crooks v. Housing Authority of City of Los Angeles* (2019) 40 Cal.App.5th 893, 903-904.) To be material, a misrepresentation or omission must "have the capacity to impair or pervert the functioning of a government agency." (*Ibid.* at pp. 906-07 (citations omitted).) The standard is objective and focuses on the potential effect of the statement on a government agency. (*Id.*, at p. 907.)

Here,

HACLA was fully aware of Petitioner's absence as her landlord reported it four days after her arrest. HACLA allowed her to continue her voucher after her absence of less than 90 days. HACLA also approved a new rental unit for Petitioner.

There

is nothing in the hearing officer's findings to conclude that Petitioner's failure to report her jail time impaired the functioning of the government agency. Therefore, exercising its independent judgment, the Court finds that HACLA abused its discretion in terminating Section 8 subsidies based on an unreported absence.

HACLA

must revisit this decision on remand, taking into account the law around material violations of reporting obligations.

E. HACLA's decision to terminate Section 8 subsidies did not consider Petitioner's disability

Federal law requires that

a PHA consider reasonable accommodation when it terminates a family with a person with disabilities. (24 C.F.R. § 982.552(c)(2)(iv).) HACLA also states that before an informal hearing, the notice of intended action must include information on the availability of a reasonable accommodation for a family containing a person with a disability. (HACLA Admin. Plan § 14.7.1 (RJN Exh. 2).)

Despite

Petitioner explaining that she is taking medication and in treatment to manage her disability, HACLA failed to include information on the availability of a reasonable accommodation on its Notice of Intended Action and Right to Hearing. (AR 118-123.) Petitioner's mental health clinician testified that Petitioner has a history of schizoaffective disorder and Petitioner's mental health condition might be a contributing factor to the allegations in this case. (AR 124-126.) Petitioner's mental health clinician also stated that Petitioner had been engaged in weekly therapy and other supports to manage her disability since the incident underlying the termination had occurred. (AR 124-126.) Under California law, a request does not need to be made in a particular manner or at a particular time, and does not need to use the phrase reasonable accommodation. (Cal. Code Regs. Tit. 2, § 12176, subd. (f)(3).)

HACLA

argues that the disability claim is unpersuasive because Petitioner was not denied benefits "solely by reason" of her disability. (Opposition, 13:23-25.) The regulations governing these proceedings do not say this. HACLA's "solely by reason" quote comes from the Rehabilitation Act, 29 U.S.C. § 794(a) and was referenced by the court in *Sinisgallo v. Town of Islip Housing Authority* (E.D.N.Y. 2012) 865 F.Supp.2d 307, 337-339 to point out that only a "causal nexus" between the disability and the underlying basis for termination is required. Under the applicable standards, as *Sinisgallo* makes clear, Petitioner needs to show that she is disabled; that HACLA was aware of her disabilities; that there is a causal nexus between her disabilities and HACLA's allegations; and that HACLA failed to provide or consider a reasonable accommodation. (Id., at pp. 337-341.)

HACLA

also argues that Petitioner never raised a specific disability. It is not Petitioner's burden to raise a disability. (*Auburn Woods I Homeowners Assn. v. Fair Employment & Housing Com.* (2004) 121 Cal.App.4th 1578, 1598.) HACLA was on notice about Petitioner's disability as a result of Petitioner and Petitioner's mental health clinician.

In

sum, the Court finds HACLA failed to consider Petitioner's reasonable accommodation request and the hearing officer did not state their basis for denying that request. (AR 11-14.) HACLA's failure to consider and engage with Petitioner's reasonable accommodation request is in direct contravention of relevant laws and compels the reversal of HACLA's decision.

F. HACLA Failed to Affirmatively Decide

Whether to Exercise Its Discretion to Consider Petitioner's Mitigating Circumstances

24 C.F.R. § 982.552, subd. (c)(2)(i) provides that:

The PHA may consider all relevant circumstances such as the seriousness of the case, the extent of participation or culpability of individual family members, mitigating circumstances related to the disability of a family member, and the effects of denial or termination of assistance on other family members who were not involved in the action or failure.

There

is no evidence that the hearing officer considered these circumstances before deciding that Petitioner's Section 8 subsidies should be terminated. The Court recognizes that the regulation says that PHA "may" consider all of the relevant circumstances. However, "the failure to recognize the authority to exercise discretion can itself be grounds for reversal." (Fletcher v. Superior Court (2002) 100 Cal.App.4th 386, 392.) There is nothing in the hearing officer's decision indicating that he either exercised his discretion to consider the factors identified or that he was aware of his discretion to consider those factors and chose not to do so. A reversal is therefore warranted. (Johnson v. Housing Authority of City of Oakland (2019) 38 Cal.App.5th 603, 615 ["a 'hearing officer's failure to make any findings, coupled with his failure to indicate any awareness that he was explicitly authorized by HUD to exercise his discretion to take into account relevant circumstances' is contrary to established law"].)

G. HACLA Failed to Conduct a Fair Hearing

Finally,

Petitioner contends that HACLA did not receive a fair hearing because it did not give notice to Petitioner about the first hearing, and so Petitioner did not attend. (See Order Granting Stay at 5, ¶ 10, filed January 22, 2026.) HACLA also violated its own policies by not preserving a recording of the first hearing. (RJN Exh. 4 § 14.7.13 [requiring hearing officer to prepare a hearing record, including, “The audio recording of the actual hearing and any continuance hearing . . . HACLA retains hearing records permanently.”])

The hearing officer at the second hearing (where both parties attended) was the same hearing officer as at the first hearing. The hearing officer did not disclose what evidence had been discussed at the first hearing when Petitioner was not present. This creates an unacceptable probability of actual basis, and that is alone enough to show a violation of the due process right to fair procedure. (*Woody’s Group Inc. v. City of Newport Beach* (2015) 233 Cal.App.4th 1012, 1022.)

A failure to conduct a fair hearing is grounds for reversal of the hearing officer’s decision. Upon remand, HACLA should consider the correct measures to ensure there is no prejudice from the first hearing, including conducting the hearing before a new hearing officer who did not consider the unrebutted evidence in the first hearing and issue an order based on that unrebutted evidence.

CONCLUSION

The Court GRANTS the motion to augment the record.

The Court GRANTS the petition for writ of mandate. The Court directs HACLA to vacate its decision and remands the case to HACLA to comply with this order. The Court takes no position on how HACLA exercises its discretion following remand, except that HACLA must be clear about what legal rules it is following when making its decision and must make sufficient findings. In the interim, HACLA is required to abide by the Court’s order of January 22, 2026, which means Petitioner will continue to receive Section 8 benefits.

Pursuant to Local Rule 3.231, subd. (n),

Petitioner shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: August 19,
2026

Joseph
Lipner

Superior
Court Judge